

United States Court of Appeals for the Fourth Circuit

Judgment

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

No. SYN-CA4-26-CV-4102 Appellate ECF No. 11 — Entered June 8, 2026

In accordance with the opinion entered this date, it is ADJUDGED AND ORDERED that this appeal is DISMISSED for lack of appellate jurisdiction and that the matter is REMANDED to the United States District Court for the Northern District of West Virginia for further proceedings in Civil Action No. SYN-NDWV-25-CV-0618.

The Court does not reach the merits of the January 12, 2026 partial-summary-judgment order. That order is not vacated by this judgment. The Court expresses no view on whether Count I was correctly decided, whether the district court should revise that ruling, whether a later Rule 54(b) certification would be proper, or how Count II and Copper's amended counterclaim should be resolved.

The formal disposition is: APPEAL DISMISSED AND MATTER REMANDED. The Clerk shall serve this judgment and the accompanying opinion on all counsel of record and shall note entry on the appellate docket as required by Federal Rule of Appellate Procedure 36.

Costs and post-judgment notice

Under Federal Rule of Appellate Procedure 39(a)(1), and by express direction of the Court in this judgment, EACH SIDE SHALL BEAR ITS OWN COSTS. No costs are taxed in favor of Appellant or either Appellee. Each party is responsible for its own recoverable appellate printing, reproduction, and filing expenses, and no party shall submit a bill of costs inconsistent with this order.

This allocation is part of the judgment and will be reproduced in the mandate. It reflects the Court's express exercise of its authority under Rule 39(a)(1); it is not a ruling on contractual fee shifting, district-court costs, or expenses attributable to unresolved claims. Any such matter remains for the appropriate court under the governing agreement, rules, and later dispositions.

A petition for panel rehearing or rehearing en banc is due within fourteen days after entry of judgment unless an order changes the time. For this private civil appeal, the ordinary date is June 22, 2026. Absent a timely petition, stay motion, or order altering issuance, the mandate ordinarily issues seven days after that period expires.

Entered at the direction of the panel on June 8, 2026. /s/ Clerk, United States Court of Appeals for the Fourth Circuit